

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #01	CCRB Case #: 201902897	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/02/2019 4:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/19/2021	Precinct: 75		
Date/Time CV Reported Wed, 04/03/2019 4:32 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/03/2019 4:32 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. POF Ileana Feliz	25565	950538	SRG 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SDS Janette Cruz	02080	914329	INT CIS
2. CPT Bruce Ceparano	00000	933682	SRG 3
3. DTS Yurantz Assade	4516	939886	SRG
4. SGT Daniel Comas	707	943098	SRG 3
5. POM Andrzej Babiuch	15395	946764	SRG 3
6. POM Yuriy Zevelev	10007	955693	SRG 3
7. POM Anthony Buonomo	09259	954579	SRG 3
8. POM Brendan King	3712	955010	SRG 3
9. POM Tony Ip	01891	949749	SRG 3
10. POM Alexander La	00205	949188	SRG 3
11. POM Joshua Diniz	27010	945668	SRG 3
12. POM Michael Guglielmo	25598	941217	SRG 3
13. POM Daniel Kim	04816	950682	SRG 3
14. POM Daniel Gillen	08106	949029	SRG 3

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . Officers	Abuse: Officers searched § 87(2)(b) in Brooklyn.	B . Exonerated
C . POF Ileana Feliz	Abuse: Police Officer Ileana Feliz strip-searched § 87(2)(b)	C . Unsubstantiated
D . An officer	Abuse: An officer threatened to notify Administration for Children's Services.	D . Officer(s) Unidentified

Case Summary

On April 3, 2019, § 87(2)(b) filed the following complaint with the CCRB by phone.

On April 2, 2019, at approximately 4:00 a.m., § 87(2)(b) was asleep in her apartment at § 87(2)(b) in Brooklyn when officers forcibly entered and searched her apartment (**Allegation A-B: Abuse of Authority, exonerated**). Police Officer Ileana Feliz from Strategic Response Group 3 (SRG3) allegedly strip-searched § 87(2)(b) (**Allegation C: Abuse of Authority, unsubstantiated**). During the incident, an officer allegedly threatened to notify the Administration for Children's Services (**Allegation D: Abuse of Authority, officer(s) unidentified**).

No arrests were made during this incident. There is no video evidence.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b), in Brooklyn.

Allegation (B) Abuse of Authority: Officers searched § 87(2)(b), in Brooklyn.

It is undisputed that officers entered and searched § 87(2)(b)'s apartment pursuant to a search warrant.

Search warrant § 87(2)(b) was signed on § 87(2)(b) by the Honorable Kings County Judge § 87(2)(b) and was executed on April 2, 2019 (Board Review 04).

As per Criminal Procedure Law 690.05, officers may forcibly enter and search a location for which they have a valid search warrant (Board Review 05).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-B** be **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Ileana Feliz strip-searched § 87(2)(b).

§ 87(2)(b) provided a verified statement to the CCRB and testified in a 50H hearing (Board Review 01, Board Review 02). § 87(2)(g)

§ 87(2)(b) testified that she sat handcuffed on the bed in the bedroom with her § 87(2)(b)-old daughter, § 87(2)(b) who was asleep next to her in the bed. § 87(2)(b) At the time, § 87(2)(b) wore a dress that extended from her chest to above her knees. § 87(2)(b) was not wearing underwear. PO Feliz reached beneath her dress from the bottom and patted § 87(2)(b)'s breasts, down her torso, and around her groin. PO Feliz did not touch § 87(2)(b)'s vagina. § 87(2)(b) did not know if her breasts, groin, or buttocks were exposed. § 87(2)(b) remained asleep during the interaction, and no one else was in the room.

PO Feliz stated that § 87(2)(b) was wearing pajamas which were comprised of a shirt and pants (Board Review 06). PO Feliz, with open hands, patted § 87(2)(b) across her chest, down her torso, and around her waist. At no point did PO Feliz put her hands under § 87(2)(b)'s clothes. At no point were § 87(2)(b)'s breasts, groin, or buttocks exposed.

Sergeant Janette Cruz from SRG3 testified that she did not observe any officer strip search § 87(2)(b) (Board Review 07).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Abuse of Authority: An officer threatened to notify Administration for Children's Services.

§ 87(2)(b) testified that a female officer said that she would call ACS if the officers found drugs in the apartment (Board Review 01).

§ 87(2)(b) testified that a female officer said if the officers found anything then they would have to take § 87(2)(b) away (Board Review 03).

The Search Warrant Pre-Execution Plan listed PO Feliz and Sgt. Cruz as the only female officers present during the incident (Board Review 08).

Sgt. Cruz and PO Feliz both denied threatening to call ACS (Board Review 07, Board Review 06). Sgt. Cruz and PO Feliz stated that no officer talked about drugs in the apartment or mentioned involving ACS.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **officer(s) unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
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- PO Feliz has been a member of service for eight years, and this is the first CCRB complaint to which she has been a subject (Board Review 10).

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal injuries, mental anguish, deprivation of her liberty, great humiliation, embarrassment, scorn, disgrace in her community, illegal detainment, assault, being handcuffed, forcible search, ridicule among her peers, mental and bodily distress, and medical expenses (Board Review 13). § 87(2)(b) is seeking adjustment and payment as redress. A 50H hearing was held on § 87(2)(b) (Board Review 02).

Squad No.: _____

Investigator:

Signature

Print Title & Name

Date

Squad Leader:

Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date